

**IN THE COURT OF 4th ADDITIONAL SESSIONS JUDGE,
BANASKANTHA AT THARAD**

Sessions Case No. 25 of 2018

**The State of Gujarat,
Tharad.**

....Complainant

versus

Dinesh Sursinh Motla (Bheel)
R/o. : Narvali, Taluka : Kushi, Dist. : Dhaar (M.P.)

....Accused

Sessions Case No. 26 of 2018

**The State of Gujarat,
Tharad.**

....Complainant

versus

1. **Bharat @ Nanka Bhanwarsi (Bhanwariya) Bheel**
R/o. : Bagholi, Kushi, Dist. : Dhaar (M.P.)
2. **Shantilal Kishanlal Soni (Abated vide order dated 23.08.2022)**
....Accused Persons

ORDER BELOW EX.1 & 32

Present :-

Shri R. D. Joshi, learned A.P.P. for the State.

None for the accused persons.

- 1) The present cases have arisen from FIR No.130/2013 registered at P. S. Tharad for the offences punishable under Section 457, 380 and 114 of IPC. As both the cases have arisen from same FIR, these cases have been consolidated vide order dated 29.11.2024 passed below Exh.31 in SC No.26/2018.

- 2) During the investigation of the above case FIR, Dinesh S/o Sursinh Motla was arrested in the above case FIR and charge-sheet was filed against him in the court of Judicial Magistrate First Class, Tharad for the offences punishable under Section 457, 380 and 114 of IPC and the same was registered as CC No. 819/2013. During the proceedings, the charge was also framed against the accused for the offences punishable under Section 457, 380 and 114 of IPC and thereafter, Police Sub-Inspector, Tharad was filed a report to add offence punishable under Section 413 of IPC against the accused and considering the fact that the offence punishable under Section 413 of IPC is exclusively triable by the Court of Sessions, Ld. JMFC, Tharad vide order dated 24.02.2014, had committed the case to the Camp Court of Additional Sessions Judge, Deodar and it was registered as SC No.101/2014. Thereafter, the case was again re-numbered as SC No.184/2015 in the Additional District & Sessions Court, Deodar and after creation of this court, the above case is received by the way of transfer and re-registered as SC No. 25/2018. the perusal of the record shows that on 03.03.2015, Ld. Additional Sessions Judge, Deesa Camp at Deodar, had decided not to frame the charge against the accused for the offence punishable under Section 411 & 413 of IPC and went on to frame the charge for the offences punishable under Section 457, 380 & 114 of IPC.
- 3) During the proceedings, in SC No. 25/2018, the accused Dinesh S/o Sursinh Motla had stopped appearing before this court and the case has been put in the category of dormant file by the Ld. Predecessor of this court. The Non-Bailable Warrant was issued against the

accused Dinesh S/o Sursinh Motla which remained un-executed, therefore, 24.08.2024, a proclamation under Section 82 of CrPC was issued against the accused Dinesh S/o Sursinh Motla to appear before this court on 21.11.2023 and on his failure to appear before this court in this case, vide order dated 30.01.2024 passed below Exh.1, the accused Dinesh S/o Sursinh Motla has been declared proclaimed offender/absconder under Section 82 of the CrPC in the SC No.25/2018.

- 4) The Officer In-charge of P. S. Tharad was also directed to register separate FIR against the accused Dinesh S/o Sursinh Motla for the offences punishable under Section 174-A of the IPC and consequently, an FIR for the offence punishable under Section 174-A of the IPC was registered against the accused Dinesh S/o Sursinh Motla at P. S. Tharad vide No.11195050240075/2024 dated 12.02.2024.
- 5) The SC No.26/2018 has also arisen from FIR No.130/2013 registered at P. S. Tharad for the offences punishable under Section 457, 380 and 114 of IPC. The perusal of the record shows that after completion of investigation, the charge sheet was filed in the Court of Ld. JMFC, Tharad against the accused no.1 Bharat @ Nanka Bhanwarsi (Bhanwariya) Bheel and accused no.2 Shantilal Kishanlal Soni for the offences punishable under Section 457, 380, 114, 411 & 413 of IPC. The charge sheet was registered before the Court of Ld. JMFC Vav, Tharad as CC No.22/2014. In the CC No.22/2014, the accused persons had appeared before the Ld. JMFC, Tharad and as the offence punishable under Section 413 of

IPC is exclusively triable by the Court of Sessions, in view of the provision of Section 209 of CrPC, the case was committed in the Court of Ld. Additional Sessions Judge, Deesa and it was registered as SC No.102/2024. During the proceeding before the Ld. Additional Sessions Court, Deesa, the case was transferred to the Court of Ld. Additional Sessions Judge, Deodar and there, it was re-numbered as SC No. 185/2015. In the year 2018, after the constitution of Additional District and Sessions Court, Tharad, the case was received by the way of transfer and it was re-numbered as SC No.26/2018.

- 6) During the proceedings in SC No.26/2018, before this court, the accused persons had stopped appearing and non-bailable warrant were issued to both the above accused persons which remained un-executed. After that, again non-bailable warrants were issued to both the accused persons and on the non-bailable warrants issued against the accused no.2 Shantilal Kishanlal Soni, the report is received that he is expired. The report was accompanied with the copy of the death certificate of accused no.2 which showed that he was expired on 12.01.2020. The copy of the death certificate of the Shantilal Kishanlal Soni, was kept on record at Exh.11 and vide order dated 23.08.2022 passed below Exh.1, the proceedings against him in the present case was abated.
- 7) As the non-bailable warrant issued against the accused Bharat @ Nanka Bhanwarsi (Bhanwariya) Bheel had remained un-executed and the surety has also not appeared, the bail bond and surety bond of the accused no.1 were forfeited and a proclamation under Section

82 of the CrPC was issued against the accused no.1 Bharat @ Nanka Bhanwarsi (Bhanwariya) Bheel which was duly published and due to failure of the accused to appear before this court, vide order dated 30.12.2023 passed below Exh.1, he had declared proclaimed offender/absconder under Section 82 of the CrPC.

- 8) The Officer In-charge of P. S. Tharad was also directed to register separate FIR against the accused Bharat @ Nanka Bhanwarsi (Bhanwariya) Bheel for the offences punishable under Section 174-A of the IPC and consequently, an FIR for the offence punishable under Section 174-A of the IPC was registered against the accused Bharat @ Nanka Bhanwarsi (Bhanwariya) Bheel at P. S. Tharad vide No.11195050240011/2024 dated 11.01.2024.
- 9) The perusal of the record of the case shows that initially, the FIR was registered for the offences punishable under Section 457, 380, 114 of IPC and subsequently, during the investigation of the case, at the time of filing of supplementary charge-sheet, the offences punishable under Section 411 & 413 of IPC were added by the I.O. and the charge sheet is filed against the accused persons for the offences punishable under Section 457, 380, 114, 411 & 413 of IPC.
- 10) As far as offence punishable under Section 413 of IPC is concerned, the charge sheet is conspicuously silent, how the accused persons had been dealing in the stolen property and what type of stolen property which pertaining to which case, was recovered from them and in which kind of properties which had been stolen, had been dealing. Therefore, vide order dated 13.08.2024 passed below Exh.1, a notice was issued to Investigating Officer for seeking

explanation how, the offences punishable under 411 & 413 of IPC are made out against the accused Bharat @ Nanka and accused Dinesh.

- 11) On 24.09.2024, the I.O. has appeared and he had filed a report in SC No.25/2018 at Exh.18 and in SC No.26/2018 at Exh.30 and has submitted that the offence punishable under Section 411 & 413 of IPC i.e. habitually dealing in stolen property, was made out only against the accused Shantilal Kishanlal Soni and no offence punishable under Section 411 & 413 of IPC are made out against the accused Dinesh S/o Sursinh Motla and Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya).
- 12) Thereafter, Ld. APP for the State has moved this application at Exh.32 and has submitted that offence punishable under Section 411 & 413 of IPC are not made out against the accused Dinesh S/o Sursinh Motla and Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya) . It is further submitted by the Ld. APP for the State that by the report filed by the I.O. at Exh.18 in SC No.25/2018 and at Exh.30 in SC No.26/2018, it is apparent that these offences were added by the I.O. against the accused Shantilal Kishanlal Soni who has already expired and case against him has been abated vide order dated 23.08.2022 passed in SC No.26/2018. It is further submitted by the Ld. APP for the State that the SC No.25/2018 had been committed to this court after adding Section 413 of IPC which is exclusively triable by the Court of Sessions but on 30.03.2015, the Ld. Additional Sessions Judge, Deesa Camp at Deodar, had decided not to frame the charge against the accused for the offences

punishable under Section 411 & 413 of IPC and went on to frame the charge for the offences punishable under Section 457, 380 & 114 of IPC, which are triable by the JMFC, but the Ld. Predecessor of this court could not remand back the case as the fact that the offences against the accused are triable by the JMFC was not brought into his notice.

- 13) It is further submitted by the Ld. APP for the State that the SC No.26/2018 has been pending at the stage of framing of charge and no offence punishable under Section 411 & 413 of IPC is made out against the accused Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya). It is further submitted by the Ld. APP for the State that after the report of the I.O. at Exh.18 in SC No.25/2018 and at Exh.30 in SC No.26/2018, it is clear that the offence punishable under Section 413 and 411 was invoked against the accused Shantilal Kishanlal Soni, who had expired and case against whom is abated and no offence which is exclusively triable by the Court of Sessions, is made out against the remaining two accused persons. The Ld. APP for the State has submitted that, these cases may be send to the Court of Judicial Magistrate First Class as the offences punishable under Section 380, 457 & 114 of IPC are triable by the Ld. JMFC, Tharad.
- 14) I have heard the submissions of Ld. APP for the State and perused the record. The perusal of the report filed by the I.O. at Exh.18 in SC No.25/2018 and at Exh.30 in SC No.26/2018, clearly shows that no offence punishable under Section 413 which is exclusively triable by the Court of Sessions, is made out against the

accused Dinesh S/o Sursinh Motla and Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya) and the offence punishable under Section 413 of IPC was added because it was invoked against the co-accused Shantilal Kishanlal Soni who was the accused no.2 in SC No.26/2018 and the perusal of the record shows that the case qua him, was abated by the Ld. Predecessor of this court vide order dated 23.08.2022 passed below Exh.1.

15) The perusal of the record also shows that in SC No.25/2018, the Ld. Predecessor has decided not to frame a charge against the accused for the offences punishable under Section 413 of IPC which is exclusively triable by the Court of Sessions. The Ld. APP for the State has prayed that as no offence punishable under Section 413 of IPC is made out against the present accused persons and all the other offences are triable by the Ld. JMFC, Tharad, and these cases may be sent back to the Court of Ld. JMFC, Tharad.

16) Section 228 of the Code of Criminal Procedure provides about the framing of charge. In a trial before a Court of Session, it reads as

"228. Framing of charge

(1) If, after such consideration and hearing as aforesaid, the Judge is of opinion that there is ground for presuming that the accused has committed an offence which

(a) is not exclusively triable by the Court of Session, he may, frame a charge against the accused and, by order, transfer the case for trial to the Chief Judicial Magistrate, and thereupon the Chief Judicial Magistrate shall try the offence in accordance with the procedure for the trial of warrant cases instituted on a police report;....."

Thus, this Court is of the opinion that as there is a ground for presuming that the accused persons have committed the offence but

not exclusively triable by the Court of Sessions. As a result thereof, Considering the submissions of Ld. APP for the State and after perusing the record, this court is of the view that no offence punishable under Section 413 of IPC is made out against the present accused persons i.e. Dinesh S/o Sursinh Motla and Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya) and all the other offences which have been invoked against the the present accused persons, are triable by the Ld. JMFC. Therefore, the present application is allowed and the following order is passed.

:-ORDER:-

1. The Sessions Case No. 25/2024 and Sessions Case No. 26/2024 are disposed of.
2. As the offences punishable under Section 457, 380 & 114 of IPC charged against the **Dinesh S/o Sursinh Motla** who is an accused in Sessions Case No. 25/2024, are triable by JMFC, the concerned criminal case is transferred back to Judicial Magistrate First Class, Tharad, for further proceedings.
3. The case against **Shantilal Kishanlal Soni** who was an accused in SC No.26/2024 is abated vide order dated 23.08.2022 passed below Exh.1 in this case and no offence punishable under Section 411 & 413 of IPC are made out against other accused, therefore, as the offences punishable under Section 457, 380 & 114 of IPC which are invoked against the **Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya)** who is an accused in Sessions Case No. 26/2024, are triable by JMFC, the concerned criminal case is transferred back to Judicial Magistrate First Class, Tharad, for

further proceedings.

4. Both the Accused persons of Sessions Case No. 25/2024 and Sessions Case No. 26/2024 i.e. **Dinesh S/o Sursinh Motla** and **Bharat @ Nanka Bhavarsi (Bhanwariya) Bheel (Mohaniya)** have been declared proclaimed offender/absconder and therefore, the concerned court is directed to proceed to record evidence under Section 299 of CrPC and to proceed accordingly.
5. Record and File of the case be sent back to court of Ld. Judicial Magistrate First Class, Tharad, with the copy of this order.

Signed and Pronounced in the open Court on this 30th day of November, 2024.

THARAD
DATE : 30/11/2024

(RAHUL SHARMA)
4th ADDITIONAL SESSIONS JUDGE,
THARAD AT BANASKANTHA
CODE No. 01588